

25LBCV02173 25LBCV02173

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-13

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Case Number: 25LBCV02173 Hearing Date: August 13, 2026 Dept: S27

Background Facts

On August 1, 2025, Plaintiffs, Brian

Gonzalez and Angelica Gutierrez (collectively, "Plaintiffs") filed this action against defendants, American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10, inclusive, arising from the purchase of an allegedly defective 2022 Honda CR-V (the "Subject Vehicle"). (Compl. ¶ 6.) Plaintiffs allege, inter alia, that "[o]n or about March 5, 2022, Plaintiff[s] entered into a warranty contract with Defendant" (Id.) "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to transmission defects, engine defects, electrical defects; among other defects and non-conformities." (Id. ¶ 11.)

On September 29, 2025, Plaintiffs

filed the operative First Amended Complaint ("FAC") against Defendants alleging the following causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

On November 7, 2025, Defendant

filed an answer to the FAC.

On May 18, 2026, Defendant filed

and served a motion for judgment on the pleadings. The notice of motion provides that Defendant "move[s] for an order granting judgment on the pleading

in favor of American Honda and dismissing the Complaint with prejudice.” (Not. of Mot. at p. 1:23-24.) Upon review of the memorandum of points and authorities, the Court notes that no reference is made to the operative FAC. (Memo. of Ps and As at pp. 3-11.) Also, it appears that Defendant only challenges the fifth cause of action for fraudulent concealment in the complaint. (Id.)

On May 28, 2026, the Court granted the ex parte application of Defendant and advanced the hearing on the motion from December 17, 2026, to August 13, 2026. (05/28/26 Minute Order at p. 1.)

On July 31, 2026, Plaintiffs filed and served a notice of non-opposition to the motion for judgment on the pleadings.

Motion for Judgment
on the Pleadings

Although Plaintiffs filed a notice of non-opposition to the motion, the Court cannot grant the motion. “An amended complaint supersedes all prior complaints . . . and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (Malear v. State of California (2023) 89 Cal.App.5th 213, 221 [citations omitted, internal quotations omitted].)

The Court finds that Defendant moved for judgment on the pleadings as to a complaint which is no longer operative. The notice of motion is directed at the complaint and makes no reference to the operative FAC. (Not. of Mot. at p. 1:22-24.) Also, the memorandum of points and authorities addresses the fraudulent concealment cause of action in the complaint. Critically, the complaint is no longer an operative pleading. Defendant should have sought judgment on the pleadings as to the FAC.

Thus, pursuant to Malear v. State of California, supra, 89 Cal.App.5th 213, 221, the instant motion cannot be granted irrespective of the lack of opposition.

Conclusion

Defendant American Honda Motor Co.,

Inc.'s Motion for Judgment on the Pleadings is DENIED WITHOUT PREJUDICE.

Defendant American Honda Motor Co., Inc. is ordered to
give notice.